

9:00 AM

Line 4

25-CIV-07605 JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE
HAE SOO PARK
ANTHONY DIODATI

ROBYN H. SHIELDS

Defendant Anthony Diodati's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Anthony Diodati's demurrer to the First Amended Complaint ("FAC") of Jeewon Park, by and through his conservator, Hae Soo Park, is:

- OVERRULED as to Plaintiff's claims for Intentional Infliction of Emotional Distress ("IIED"), Trespass, Assault, and Battery;
- SUSTAINED, with leave to amend, as to Plaintiff's claims for Negligence, Housing Discrimination, Violation of Fair Housing Act, and Unlawful Business Practices; and
- SUSTAINED, without leave to amend, as to Plaintiff's claims for Negligent Hiring/Supervision/Retention and Breach of Covenant of Quiet Enjoyment.

Plaintiff shall file an amended complaint, if any, within 10 days of receiving notice of entry of this order *and* notice of entry of this Court's order on Defendant Primrose Gardens LLC's demurrer. The 10-day deadline shall not be triggered until Plaintiff receives notice of entry of both orders.

Plaintiff has not opposed this motion. Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) However, "the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.21 (Thomson Reuters Apr. 2025 update).) Therefore, the Court has substantively reviewed Defendant's demurrer and motion to strike.

FACTUAL BACKGROUND

On November 9, 2018, Plaintiff entered into a residential lease agreement with Defendant Primrose Gardens, LLC (“Primrose”). (FAC, ¶ 7.) Before the time of entering into the lease, it was disclosed to Defendants that Plaintiff was a person with special needs and would require the presence of a caregiver at all times. (*Ibid.*) At some point during the tenancy, Defendant Diodati unilaterally relocated Plaintiff to a more isolated unit on the premises due to noise complaints allegedly stemming from Plaintiff’s disability-related behaviors. (*Id.*, at ¶¶ 9, 20.)

On May 15, 2023, while Plaintiff’s caregiver stepped out briefly, Defendant Diodati entered Plaintiff’s unit without permission. (*Id.*, ¶ 10.) Defendant Diodati knew that Plaintiff Park was making noise due to his disability. (*Id.*, at ¶ 52.) During the unauthorized entry, Diodati allegedly assaulted and battered Plaintiff, verbally berated him, and caused Plaintiff severe emotional and physical harm. (*Id.*, ¶ 10.) Defendant Diodati continuously shouted at Plaintiff while trespassing in Plaintiff’s apartment. (*Id.*, ¶ 58.) Defendant Diodati also grabbed Plaintiff with his left hand by the throat, pushed Plaintiff against the hallway wall, and held him there. (*Id.*, at ¶ 64.) After opening the door to Plaintiff’s apartment, Defendant Diodati again pushed Plaintiff back into his apartment and closed the door. (*Ibid.*)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov’ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) When considering demurrers, courts “are required to construe the complaint liberally to determine whether a cause of action has been stated, given the assumed truth of the facts pleaded.” (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

The facts to be pleaded are those upon which liability depends—i.e., “the facts constituting the cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) These are commonly referred to as “ultimate facts.” (*Ibid.*, citing *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, 473-74.)

“The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The court “may consider all material facts pleaded in the complaint and those arising by reasonable implication therefrom; it may not consider contentions, deductions or conclusions of fact or law. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220 (citing *Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Montclair Parkowners Assn. v. City of Montclair* (1999) 76 Cal.App.4th 784, 790).)

If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare*

(2010) 183 Cal.App.4th 1373, 1379.) However, where there is no reasonable possibility that amendment can cure the defects of the Complaint, a trial Court does *not* abuse its discretion by sustaining a demurrer without leave to amend. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) It is Plaintiff's burden to prove such reasonable possibility. (*Ibid.*)

Since a general demurrer "admits the truth of all material factual allegations in the complaint," a plaintiff's ability to prove these allegations "does not concern the reviewing court. The plaintiff need only plead facts showing that they may be entitled to some relief." (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (internal quotations omitted) (superseded by statute on other grounds).)

LEGAL ANALYSIS

A. Demurrer

1. The Facts Alleged in the FAC Are Sufficient to State a Claim for Battery, Assault, Trespass, and IIED Against Defendant Diodati

a. Battery - Tenth COA

The elements of battery are: (1) the defendant touched plaintiff or caused plaintiff to be touched with the intent to harm or offend them; (2) that plaintiff did not consent to the touching; (3) that plaintiff was harmed or offended by defendant's conduct; and (4) that a reasonable person in plaintiff's situation would have been offended by the touching. (CACI No. 1300; *So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

Here, Plaintiff alleges that "Defendant Diodati grabbed [Plaintiff] with his left hand by the throat . . . [and] pushed [Plaintiff] against the hallway wall and held him there. (FAC, ¶ 64.) Then, [a]fter opening the door to [Plaintiff's] apartment, Diodati again pushed [Plaintiff] back into his apartment and closed the door." (*Ibid.*) Those facts are sufficient to state a claim for battery.

Accordingly, Defendant's demurrer is OVERRULED as to Plaintiff's battery claim.

b. Assault - Ninth COA

The elements of assault are: (1) the defendant acted, intending to cause harmful or offensive contact; (2) plaintiff reasonably believed that he was about to be touched in a harmful or offensive manner. In the alternative, a plaintiff must prove that: (1) defendant threatened to touch plaintiff in a harmful or offensive manner; (2) it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI No. 1301; *So v. Shin*, *supra* 212 Cal.App.4th at 668-69.)

Here, the sequence of events described in the complaint supports a cause of action for assault. Defendant entered Plaintiff's apartment, approached Plaintiff in an aggressive matter, shouting at

him, and ultimately grabbed him by the throat, held him against a wall, and shoved him back into his apartment. Under those facts, it is reasonable that Plaintiff would have feared he would be touched prior to the first physical contact, and again once Defendant grabbed him by the throat and held him against a wall.

Accordingly, Defendant's demurrer is OVERRULED as to Plaintiff's assault claim.

c. Trespass – Eighth COA

The elements of trespass are: (1) plaintiff owned/leased/occupied/controlled the property; (2) defendant intentionally/although not intending to do so, recklessly/negligently entered plaintiff's property; (3) plaintiff did not give permission for the entry or that defendant exceeded plaintiff's permission; (4) plaintiff was actually harmed; and (5) defendant's entry/conduct was a substantial factor in causing plaintiff's harm. (CACI No. 2000).

Plaintiff alleges that he was a tenant at Primrose, that defendant entered his property without permission, and assaulted and battered him, resulting in severe emotional and physical harm. Those facts state a cause of action for trespass.

Accordingly, Defendant's demurrer is OVERRULED as to Plaintiff's trespass claim.

d. IIED – Fifth COA

The elements of IIED are: 1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) A defendant's conduct is "outrageous" when it is "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Ibid.*) The defendant must have "'intended to inflict injury or engaged with the realization that injury will result.'" (*Ibid.*, citing *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 905-06.)

In *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1045-46, the Court of Appeal found that questions of fact existed as whether a landlord who changed a tenant's locks at the request of her leaseholder employer, causing her to leave her residence, constituted outrageous conduct.

Here, Plaintiff – a tenant with special needs requiring a caregiver – alleges that Defendant Diodati entered into his apartment and battered him, including grabbing him by his throat and holding him against a wall, while Plaintiff's caregiver had briefly left. Taken as true, those facts constitute allegations of extreme and outrageous conduct to survive a demurrer.

Accordingly, Defendant's demurrer to OVERRULED as to Plaintiff's IIED claim.

2. Plaintiff Fails to Allege Sufficient Facts to Establish a Claim for Negligent Hiring/Supervision/Retention, Negligence, Housing Discrimination, Violation of Fair Housing Act, Breach of Covenant of Quiet Enjoyment, and Unlawful Business Practices Against Defendant Diodati

a. Negligent Hiring/Supervision/Retention – First COA

The elements for a claim of negligent hiring, supervision and/or retention, are: (1) the employer defendant hired the employee; (2) the employee was/became unfit or incompetent to perform the work for which the employee was hired; (3) the employer defendant knew or should have known that employee was/became unfit or incompetent and that this unfitness or incompetence created a particular risk to others; (4) the employee's unfitness or incompetence harmed plaintiff; and (5) the employer defendant's negligence in hiring, supervising or retaining employee was a substantial factor in causing plaintiff's harm. (CACI No. 426.)

Here, Plaintiff has not alleged that Defendant Diodati negligently hired, supervised, or retained anyone. Rather, Plaintiff alleges that Diodati was an employee of Defendant Primrose. Further, Defendant Diodati is the employee who alleged harmed Plaintiff. Plaintiff has not, and cannot, plead a cause of action for negligent hiring/supervision/retention against Defendant Diodati.

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiff's negligent hiring / supervision / retention claim, without leave to amend. The Court notes that correcting this error in the proposed Second Amended Complaint would require more careful pleading. In the FAC, the First COA is "Against All Defendants" though Plaintiff does not even argue that this COA was ever intended to be against Diodati. If the First COA was instead entitled "Against Primrose Gardens, LLC" then this demurrer may not have even been necessary. A proper meet and confer may have avoided this as well.

b. Negligence – Second COA

The elements of negligence are: (1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Here, Plaintiff has not pleaded facts establishing an alleged duty owed to Plaintiff by Defendant Diodati, and a breach of such duty. Rather, the facts alleged in the FAC describe deliberate and purposeful conduct by Diodati – entering Plaintiff's apartment without permission and assaulting and battering Plaintiff – not acts that can be characterized as a failure to exercise reasonable care.

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiffs negligence claim, with leave to amend.

c. Housing Discrimination and Violation of the Fair Housing Act – Third and Sixth COA

To bring a claim for housing discrimination and violation of the Fair Housing Act, a plaintiff must prove that: (1) the defendant was the owner of the property; (2) plaintiff sought to rent/was living in the property; (3) plaintiff had a history of having a disability that limited a major life activity; (4) defendant knew of, or should have known of plaintiff's disability; (5) in order to afford plaintiff an equal opportunity to use and enjoy the property, it was necessary to provide specific accommodation; (6) it was reasonable to provide specific accommodation; and (7) defendant refused to make this accommodation. (CACI No. 2548).

Here, while Plaintiff's FAC makes reference to defendant having a disability known to Defendants and a failure to accommodate that disability, Defendant does not plead facts establishing what major life activity was affected, what accommodations were necessary, that the accommodations were reasonable, and that defendant refused to make the accommodations.

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiff's claims for housing discrimination and violation of the Fair Housing Act, with leave to amend.

d. Breach of Covenant of Quiet Enjoyment

The common law covenant of quiet enjoyment promises "that the lessor will allow possession and quiet enjoyment of the premises . . . and will not by his own acts disturb the possession of the tenant." (*Marchese v. Standard Realty & Dev. Co.* (1977) 74 Cal. App.3d 142, 147.)

A breach of covenant claim arises from contract. Here, the contract is a lease agreement between Plaintiff and Defendant Primrose, the landlord. (FAC, ¶ 7.) Defendant Diodati merely "an individual employed by Defendant Primrose." (*Id.*, at ¶ 3.) He is not a party to the lease agreement and therefore cannot be sued for breach of a covenant flowing from the lease agreement.

Again as noted above, more careful pleading identifying which COA is directed to which defendant, along with a proper meet and confer, may have avoided this demurrer.

Defendant's demurrer to Plaintiff's breach of covenant of quiet enjoyment is SUSTAINED, without leave to amend.

e. Unlawful Business Practices

Plaintiff's unlawful business practices claim is alleged solely on conclusory terms without alleging facts supporting how relocation or the underlying altercation constitute business practices. (*See Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 618-619.)

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiff's unlawful business practices claim, with leave to amend.

Leave to Amend

Plaintiff has ten days to file and serve the Second Amended Complaint from service of written notice of entry of order by both demurring defendants Primrose and Diodati

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

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ROBYN H. SHIELDS

Defendant Anthony Diodati's Motion to Strike portions of Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Diodati's unopposed Motion to Strike portions of Plaintiff's First Amended Complaint was filed concurrent with its Demurrer also heard on this calendar. The factual summary is not repeated as it would be redundant. The motion is GRANTED in part and DENIED in part.

Defendant seeks to strike the 4th Cause of Action (COA) for Punitive Damages, the not-numbered (12th) COA for Exemplary Damages, and all other references to punitive and/or exemplary damages. Notice of Demurrer and Mtn. to Strike, pg. 3, lines 13-19.

Punitive damages may be recovered "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).)

"'Malice' is means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code §3294, subd. (c)(1).)

"'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294, subd. (c)(2).)

"A person acts with knowing disregard when the person is aware of the probable dangerous consequences of the person's conduct and deliberately fails to avoid those consequences." (CACI No. 3940.)

"'Despicable conduct' is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people." (CACI No. 3940.)

Here, the assaultive conduct alleged by Plaintiff is, as pleaded, conduct intended by the defendant to cause injury or carried on with willful and conscious disregard of Plaintiff's safety – which is the definition of malice. The alleged unauthorized entry into Plaintiff's apartment adds a dimension further supporting punitive damages in relation to the underlying assault and battery.